

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

DINA MARIA BRITO PITEIRA, *Claimant*

v.

SEFCO EXPORT MANAGEMENT COMPANY, INC. AND
SCHUMACHER CARGO LOGISTICS, INC., *Respondents*.

DOCKET NO. 2026(I)

Served: September 22, 2025

BEFORE: Theresa DIKE, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION AND SUMMARY OF DECISION

Claimant Dina Maria Brito Piteira (“Dina Piteira”) initiated this proceeding on behalf of herself and her husband, Carlos Neves, also known as Carlos Schnee (hereinafter “Carlos”), by filing an informal complaint against Respondents Sefco Export Management Company, Inc. (“Sefco”) and Schumacher Cargo Logistics, Inc. (“Schumacher”) with the Federal Maritime Commission (“FMC” or “Commission”). Claimant alleges that in violation of 46 U.S.C § 41102(c) of the Shipping Act, and 46 C.F.R. § 545.5 of the Commission’s Regulations, Respondents colluded to deliberately abandon their two electric vehicles at the Port of Los Angeles and withheld release of the cars’ titles to prevent their export. Claimant alleges damages in the amount of \$18,813.00 as a result of the alleged conduct.

A. Background and Procedural History

Claimant and Carlos, shippers domiciled in Portugal, who purchased used vehicles from online auction sites in the United States for resale overseas, arranged with Sefco, an ocean freight forwarder, to transport the vehicles in question - two electric Fiats they purchased in the United States - to ports in Europe. Although Respondents only communicated with Carlos during the arrangements at issue, the payments for those arrangements and the purchase of the vehicles were made by Dina Piteira.

Initially, Carlos requested shipping for only one Fiat, a used 2015 gray electric Fiat 500E, Vin # 3C3CFFGE5FT623257. At Carlos’ behest, Sefco obtained and confirmed a booking with

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

Atlantic Container Lines (“ACL”), an ocean common carrier, for Roll-on/Roll-Off transportation (“Ro/Ro”)² from the Port of Baltimore to Antwerp, Belgium, for the Fiat. In addition, Sefco processed export documentation for the export of the Fiat, and purchased inland trucking of the Fiat from the seller’s facility in California to the Port of Baltimore. Claimant made two prepayments to Sefco for the shipping arrangements for the first Fiat. Carlos later purchased a second electric Fiat, a 2014 salvaged orange electric Fiat 500E Vin # 3C3CFFGE3ET244692, after which the booking with ACL to ship the first Fiat was canceled. Sefco asserts that the cancellation was requested by Carlos, while Claimant maintains that they did not authorize the cancellation.

Carlos subsequently arranged with Sefco to export the two Fiats, this time, by container from the Port of Los Angeles to Lisbon, Portugal, and beforehand to truck the Fiats inland to Respondent Schumacher’s warehouse in California for storing until they could be exported by Schumacher, a non-vessel-operating common carrier. However, while Sefco was arranging the shipping for the Fiats with Schumacher, Carlos began directly negotiating with Schumacher and ultimately decided to use the services of Schumacher directly rather than arranging via Sefco to export his cars. Sefco then turned over the handling of the shipping arrangements and documents for the vehicles to Schumacher but retained the prepayments made by Claimant and Carlos, asserting that the prepayments covered purchases and services by Sefco on behalf of Carlos at his behest. Sefco asserts that the prepayments covered: the cost of the inland trucking services prepaid by Sefco to deliver the vehicles from where they were stored to Schumacher’s warehouse; the local storage charges Sefco paid on behalf of Carlos to the seller of the first Fiat; the cancellation charges for the confirmed ACL booking; and Sefco’s freight forwarder charges for booking the shipping and for processing the export documentation for the first Fiat.

Further, when Schumacher received the titles for the two Fiats, it identified deficiencies with the titles which needed to be corrected in order to obtain authorization to export the vehicles. The cars accrued storage charges while they remained at the warehouse pending Carlos/Claimant’s resolution of the problems with the titles. However, they were ultimately unable to clear the titles for export and Schumacher issued an invoice for \$16,060 in storage charges to them for payment. Claimant and Carlos deny that they owe storage charges to Schumacher and contend that Sefco and Schumacher colluded to fabricate an issue with the titles in order to detain the cars at Schumacher’s warehouse and collect storage charges from Claimant and Carlos. Claimant then initiated this proceeding against Respondents seeking damages for the value of the Fiats because, according to them, the vehicles were no longer suitable for use due to their prolonged detention at Schumacher’s warehouse without charging their batteries, and seeking a refund of the prepayments they made to Sefco.

On December 23, 2024, the Secretary of the Commission issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), advising Respondents of the Claim and instructing them to file a response by January 17, 2025, and indicate whether they consented to the use of the Commission’s informal procedures for the adjudication of the Claim. The

² Ro/Ro is an international transport method in which the vessel uses built-in ramps that allow a non-containerized wheeled cargo at a port to be driven directly onto the vessel and off again at the destination using a self-propelled transporter. *See* <https://en.wikipedia.org/wiki/Roll-on/roll-off>.

Secretary also assigned this proceeding to the Chief Administrative Law Judge (“Chief ALJ”) to designate a small claims officer (“SCO”) for the proceeding.

Sefco initially rejected adjudication under the informal procedures. However, on February 6, 2025, it submitted a “Motion to Return to Informal Adjudication,” requesting that it be allowed to return to the informal adjudication process. Together with the motion, Sefco submitted a response to the Claim with exhibits (“Answer, Ex.”), and an affidavit from its CEO and owner, Joseph T. Quinn (“Quinn Aff.”), also supported with exhibits (“Quinn Aff. Ex.”). Claimant also submitted exhibits supporting her Claim (“Claim Ex.”).³ Respondent Schumacher did not submit an answer to the Claim.

On February 10, 2025, the Chief ALJ assigned this proceeding to the undersigned for adjudication. Pursuant to 46 C.F.R. § 502.304(a) and (e) of the Commission’s Rules of Practice and Procedure, which authorize the SCO in a Subpart S proceeding to request additional documents and/or information from the parties, on March 10, 2025, a Request for Additional Documents and Information (“Request for Supplemental Information” or “RSI”) issued, directing the parties to provide certain information and documents by April 7, 2025, and permitting any party wishing to file a response to the opposing party’s submission to do so by April 21, 2025. While Respondent Schumacher did not submit an answer to the Claim, it submitted a response to the RSI on March 11, 2025 (“Schumacher Supp. Info.”). Claimant submitted a response to the RSI on April 4, 2025 (“C. Supp. Info”), and Respondent Sefco submitted a response on April 7, 2025 (“Sefco Supp. Info”).⁴ The parties did not submit replies to each other’s responses. The record is ripe for a decision.⁵

As discussed in greater detail below, it is found that the record does not demonstrate that Respondents violated the Shipping Act. Reparations are therefore denied, and the Claim dismissed.

³ Some of the exhibits submitted by Claimant appear to be in Portuguese. Pursuant to section 502.7 of the Commission’s Rules, “[e]very document, exhibit or other paper written in a language other than English . . . offered in evidence in any proceeding before the Commission . . . shall be accompanied by an English translation thereof duly verified under oath to be an accurate translation.” 46 C.F.R. § 502.7. Claimant did not provide an English translation of those exhibits; therefore, only the portions in English will be considered.

⁴ Some of the documents submitted by Sefco contain Claimant’s private information subject to protection under 46 C.F.R. § 502.13 of the Commission’s Rules and Regulations, e.g., the date of birth, therefore those portions have been redacted. *See* Sefco Supp. Info, Ex. Q2(c) (Claimant’s Portugal Citizen Card containing private information).

⁵ The parties did not always include page numbers in their submissions; in instances when a submission is unnumbered, the decision uses, as an example, “page 1” to refer to the first page of the submission, “page 2” for the second page of the submission, etc. For unnumbered PDF documents, the decision uses the number assigned in the PDF screen for that document.

B. Argument of the Parties

1. Claimant's Arguments

Claimant alleges that Respondents purposely sought to injure her and Carlos; that Sefco colluded with Schumacher to abandon the vehicles at issue at Schumacher's office at the Port of Los Angeles; that although it had possession of one of the car titles, Sefco nevertheless denied that it had the title, all in order to sabotage efforts to export the cars; that although they prepaid shipping charges from Baltimore to Antwerp and the trucking company confirmed that it issued a refund to Sefco for the cancelled trucking service to Baltimore, Sefco kept the refund and, moreover, authorized Schumacher to impose storage charges on the vehicles at issue. Claim, pgs. 2-3; C. Supp. Info. pgs. 1-2. Claimant states that they were forced to purchase a replacement title from Panama for one of the vehicles, which Respondents then rejected because it was obtained from Panama. C. Supp. Info, pg. 3.

Claimant states: "Respondents did what they did on purpose to harm me, and so I would not get my cars" (Claim, pg. 2), and:

Sefco hid our car Documents & Titles, with the help of Schumacher, LLc. [The] cars should have been sent to the Port [of] Baltimore! Montway – [the] truckking [sic] Company followed SEFCO instructions. Sefco and Mr. Joseph [Sefco's owner], are the Respondents mostly responsible for most of the actions, but both worked together. Sefco put our cars in Los Angeles port instead of Baltimore, Port, where they should have been shipped. Cars were abandond [sic] in LA Port with the keys in the ignition, on purpose, so we had to find another solution for the export of the cars. Technically impossible without any documents to do so! Shumacker had the cars parked at there [sic] door step, and put the cars inside there [sic] park, again with Joseph Quinn, SEFCO instruction. The Fiat 500E VIN 3C3CFFGGE8FT50728 Autobidmaster, LLc gave truck driver the documents, and he left all inside car. Nybody [sic] could have taken the car! Sefco gave the permission, and Schumacker, LLc [sic] started charging parking fees for the cars. I paid SEFCO, for the trucking to Baltimore, since it was not done, SEFCO got a refund for the no delivery to Baltimore, of the cars. Montway confirmed this. I paid the trucking to SEFCO so Montway, would put the cars in Baltimore. Montway wrote me that they had to follow SEFCO's instructions, not ours. In January 2024, Mr. Joseph Quinn wrote an email to us that he was moving to Japan, just to get the pressure of [sic] his back, and that he was giving his place to George Savs [Sefco employee]. It was just one more trick!

Claim, pg. 3 (spelling, capitalization, punctuation and grammar as in original).

As for Shumacher, Claimant asserts:

Mr. Joseph Quinn, sent Title of the Fiat 500e 3C3CFFGE5FT62357, to Mr. Filip [of] Schumacker LA, when he had told mes [sic] he had not

received any TITLE form Car Export America. The post service confirms Joseph Quinn/SEFCO got the documents sent by Mr. Gary from Car Export America in Florida. So he lied to us and left us without any Export solution for the cars. More than unfair is my opinion, regarding all these actions taken by SEFCO, and Schumacker.

Mr. Filip, got our title, and never told me he had the car Titles, in January 2023. I now understand his intentions, Schumacker to charge us parking fees for the two cars. I never authorized them to put my cars in there [sic] park. If SEFCO authorized Mr. Filip / Shumacker, LLc then persons responsible [sic], to move my cars is SEFCO to pay to Schumacker not me, and they can keep the cars.

All these actions were done behind my back! The Respondents did this because we are not in the USA and had no way to understand what was happening until Mr. Gary, gave us the info, he discovered emails forwarded by mistake between SEFCO and Schumacker.

Claim, pg. 3 (spelling, capitalization, punctuation and grammar as in original).

Claimant alleges damages totaling \$18,813.00, representing: the value of the 2 Fiat 500Es, which she states were purchased for \$12,401.00; payments for trucking, export documentation preparation and booking confirmation to Belgium for one of the Fiats, totaling \$3,622.00; \$200 payment to Autobidmaster to obtain a replacement title for one of the Fiat 500E vehicles; Bank interest and other expenses; and Notary. Claim, pg. 4. Claimant contends that:

This dispute has no other solution, because the vehicles are electric and they are Scrap, by now, we don't want scrap, even if they put the cars at our door here in Portugal, and scrap for having been stopped too much time without charging the HV batteries. We did get tired of waiting and bought two electric cars in Europe, to solve our Daily city mobility problem, and had no idea how much time this would take to solve.

C. Supp. Info. Pg. 3 at no. 15.

2. Respondent Sefco's Arguments

Sefco notes that although it has been arranging shipping on behalf of Carlos since 2019, it has never directly worked with, or communicated with Claimant, Dina Piteira. Quinn Aff. pg. 1 at nos. 2-3. It states that Carlos requested quotes for shipping multiple different units from multiple locations throughout the United States from various online auction sites selling used vehicles; it subsequently issued a quote confirmation to Carlos for Ro/Ro port-to-port shipping of one car from Baltimore to Antwerp, Belgium for \$1,537 through ACL, and advised Carlos at the time of the quote that the "original title [was] to accompany unit to Baltimore port for presentation direct to USCPB US Customs" and "Your payment for a firm carrier booking is non-refundable;" that in response, Carlos asked Sefco to provide Sefco's bank information and to send him an invoice made out to Dina Piteira, stating: "better we change the name on the invoice to my wife DINA PITEIRA, rest stays the same, payment will be issued the same. Send later

copy of the transfer asap. Still missing the US trucking costs.” Quinn Aff. pg. 1 at no. 4; pg. 2 at no. 6; and. pg. 2 at no. 9 (quotation marks and capitalization in original).

Sefco states that it received a payment for \$1,567 from Claimant’s account, initiated a booking from ACL, and advised Carlos of the booking; Carlos asked Sefco to confirm inland trucking for the vehicle, and Sefco then confirmed trucking for the shipment and updated its quote to include a trucking charge of \$1,725; Sefco received a completed power of attorney from Car Export America (“CEA”), the seller of the vehicle and US Principal Party in Interest for the export, authorizing Sefco to perform export declaration for the car; it then filed an automated export system electronic export information (EEI) declaration for the car and received approval for its export, which it shared with Carlos and the USPPI; and Sefco prepared an ACL dock receipt for the shipment, after which Carlos approved the trucking arrangement and informed Sefco that it would send prepayment for the trucking charges plus an additional \$300, to be applied to local storage fees owed for the car. Quinn Aff. pg. 2 at nos. 8-12.

Further, Sefco states that upon receiving a scan of the vehicle’s title it informed Carlos that the title was deficient and needed to be corrected and that it would place an order for the trucking with a company called Montway once the prepayment for trucking was received; it received a second payment in the amount of \$2,055.00 from Claimant for the trucking of the vehicle from Martinez, California, to Baltimore, Maryland, and then sent a payment in the amount of \$465 to Autobidmaster for local storage charges accrued on the vehicle. Quinn Aff. pg. 2-3 at nos. 13-15.

According to Sefco, although the arrangement to ship his vehicle from Baltimore to Antwerp, Belgium, had been finalized and payments made, Carlos nevertheless began sourcing additional cars to buy and asked Sefco for alternative shipping rates, which Sefco provided. One of those alternative rates was for the shipping of three cars by container from Gardena, California, to Lisbon, Portugal. Carlos informed Sefco that he wanted to cancel the prior arrangement and instead ship the car from Gardena to Lisbon; Sefco informed Carlos that it would redirect the trucking of the vehicle from Baltimore to Schumacher’s warehouse in Gardena, and alerted Schumacher of the new arrangement. The next day, Carlos informed Sefco that it had won a bid for a second Fiat and instructed Sefco to arrange pick up of the first Fiat and the second Fiat and deliver them to Gardena, California and to arrange ocean shipping from there to Lisbon, Portugal. Quinn Aff. pg. 2 at nos. 18-20. The day after that, Sefco confirmed to Carlos that it had cancelled the ACL booking, advised Schumacher of the new booking request for a 40 ft container to Lisbon, and sent an updated request to Montway to pick up and deliver the two cars to Schumacher in Gardena. Quinn Aff. pg. 3 at nos. 18-23.

According to Sefco, Carlos apologized for the multiple changes to the booking and Sefco “advised [Carlos] that we would need to cover the costs for the quoted container to Lisbon per quotation, as well as do our accounting for the processed and cancelled ACL Booking with Export docs, EEI, and dock receipt --- all normal issues --- as well as bill for the two trucking pickups and then ocean shipping to Lisbon per quote E-12192022GLCN.” Quinn Aff. pgs. 3-4 at nos. 24-27. Carlos then began securing rate quotes directly from Schumacher and sought to avoid paying Sefco’s charges; Schumacher confirmed that Carlos had contacted it and it was now

working directly with Carlos; Carlos subsequently informed Sefco that he “could not proceed with the shipment of the two cars [and that] he still had issues with their second supplier, Autobidmaster;” Sefco then canceled the order from Carlos, sent the first Fiat’s car title to Schumacher and warned Schumacher that there was an issue with the title and that “all accrued and future charges will be for [Carlos’] account under the name Carlos Neves and/or Dina Piteira.” Two weeks later, Carlos confirmed that Schumacher had received the title. Quinn Aff. pg. 4 at nos. 28-30.

Sefco avers that it was unaware of the developments between Schumacher and Carlos regarding the storage charges until receiving an email from Schumacher in January 2025, indicating that storage charges were owed on the shipments. It notes that the “shipment was handed over entirely to [Schumacher] by Jan[uary] 13, 2023, with no charges to SEFCO; all charges, storage, shipping, were to be between Carlos Neves and [Schumacher].” Quinn Aff. pg. 5 at no. 36. Further, Sefco asserts:

Sefco’s cost to the customer is based on net cost to be paid out plus a handling fee for Sefco’s time/effort. Sefco provided personalized support to try to help smooth-out difficulties, as existed between Carlos Neves and his seller.

The 2 deposit payments received on account, for the Baltimore RoRo booking, were enough to cover the several outlays for Montway, storage payment, the first set of export docs (EEI, DR, booking etc), and other fees detailed line by line on Sefco’s detailed breakout of charges for the services rendered by Sefco. But did not fully compensate SEFCO for the actual extensive time and professional effort, SEFCO’s services, dedicated to his project.

Sefco Supp. Info, pgs. 3, 11.

3. Respondent Schumacher’s Arguments

Schumacher states that Sefco engaged its services to ship two regular combustion engine vehicles from Port Long Beach, California, to Antwerp, Belgium, to be loaded onto a 40 ft container; that it then proposed multiple rate options to Claimant for different service types; but when the vehicles arrived at its warehouse they turned out to be electric vehicles. Schumacher Supp. Info. pg. 2, at no. 1. Schumacher avers that no relationship existed between Sefco and Schumacher other than Sefco’s referral of Claimant to Schumacher as a customer. Schumacher Supp. Info. pg. 2, at no. 7. It states that both vehicles are currently at its warehouse in Gardena, California, “and are available for immediate release to Claimant Dina Piteira. Schumacher Supp. Info. pg. 2, at nos. 5, 14. Further, Schumacher asserts:

After receiving both Original Titles, it has been established [that the] vehicles cannot be legally exported from the USA due to discrepancies in Title Ownership to Export Declarations. Schumacher has no authority to export vehicles under current circumstances and is willing to release both vehicles & titles to Claimant Dina Piteira, without further delay, penalties or storage charges. Company wants

said vehicles removed from company warehouse immediately and has notified parties involved of such.

Schumacher is at no fault being unable to export vehicles till customer provides accurate supporting export documentation to satisfy U.S. Customs export requirements.

Schumacher Supp. Info. pg. 3, at no. 15.

II. PERTINENT FACTS ESTABLISHED BY THE RECORD (“PF”)

1. Claimant and her husband, Carlos Neves, live in Lisbon, Portugal. Complaint pg. 1 at ¶ I.
2. They occasionally purchased cars at online auction sites in the United States for resale in Europe. C. Supp. Info, Ex. 2.
3. Sefco is an ocean freight forwarder located in New York, FMC License # 020644. Answer, pg. 1 at no. 2; Quinn Aff., Ex. 1, pg. 20; <https://www2.fmc.gov/oti/FF.aspx>.
4. Sefco began transacting business with Carlos in 2019 and has transacted business with him several times since then. Sefco Supp. Info, pg. 3.
5. Carlos has dealt primarily with Joseph Quinn in transacting business with Sefco. Quinn Aff. pg. 1 at nos. 2 and 3; C. Supp. Info, pg. 3.
6. Schumacher is a non-vessel-operating common carrier (“NVOCC”) based in Gardena, California, FMC License # 020417. <https://www2.fmc.gov/oti/NVOCC.aspx>.
7. Sefco and Schumacher have no special business relationship. Sefco Supp. Info, pgs. 21-23; Schumacher Supp. Info, pg. 2, at no. 7.
8. Carlos engaged the services of Car Export America (“CEA”), an entity that arranges the purchase and shipping of cars from the United States to International destinations. CEA employee, Mr. Gary, sold the first Fiat, a used 2015 gray electric Fiat 500E, Vin # 3C3CFFGE5FT623257 (Fiat # 1) to Claimant and Carlos. Sefco Supp. Info., pg. 25; C. Supp. Info, pg. 3 at no. 10.
9. Autobidmaster, a broker engaged in the sale of “clean and salvage cars from 100% online car auctions,” sold the second Fiat, a 2014 salvaged orange electric Fiat 500E Vin # 3C3CFFGE3ET244692 (Fiat # 2), to Claimant and Carlos. Sefco Supp. Info., pgs. 24 -25; C. Supp. Info, pg. 3 at no. 11; *see also* Salvage Certificate for Fiat # 2, Sefco Supp. Info Ex. Q8(a) at pg. 21.
10. Carlos handled the arrangements for the purchase and shipping of the cars and was “the single point of contact for communicating about a shipment,” while Claimant was listed as the payer on the invoices and paid the charges for the shipments. Claim, pg. 1; C. Supp. Info, pgs. 1-2 at nos. 1 and 2; Quinn Aff. pg. 1 at nos. 2 and 3.

11. Carlos “buy[s an] average [of] 20-50 cars per year from the USA.” C. Supp. Info, Ex. 2.⁶
12. In October 2022, “Carlos requested quotes from Sefco for shipping multiple different units from multiple locations throughout the U.S. from various auction sites. . . where he was bidding on used vehicles through online auctions.” Quinn Aff. pg. 1 at no. 3.
13. During November 2022, Sefco worked on confirming rates from several Ro/Ro carriers and on November 30, 2022, issued a quote confirmation to Carlos for \$1,537.00 for port-to-port shipping of Fiat # 1 from the Dundalk Marine Terminal in Baltimore, Maryland, to Antwerp, Belgium, through ACL Ro/Ro shipping. Quinn Aff. pg. 1 at no. 6, Quinn Aff., Ex. 1, pgs. 2-3, 7, 11-13, 15, 22.
14. The quoted rate included charges for: Ro/Ro Service – sea shipping from port to port; Export Documentation (including booking of space with carrier, dock receipt & pier delivery instruction, bill of lading preparation – draft/approved copy, electronic export info declaration, filed with AES/US Customs; Sea/Ocean Forwarding Service – port – port ocean freight forwarding. Quinn Aff., Ex. 1, pgs. 16-17.
15. The quote confirmation issued to Claimant/Carlos contained notification that there would be no refunds after the booking confirmation for the shipment. It included the following notations: “Original title to accompany unit to Baltimore port for presentation direct to USCPB US Customs” and “**Your payment for a firm carrier booking is non-refundable. Freight and Insurance charges to be prepaid.**” Quinn Aff. pg. 1 at no. 6, Quinn Aff., Ex. 1, pgs. 4, 11, 22 (emphasis added).
16. On November 30, 2022, Sefco forwarded Invoice # EX-09282022BZCN for charges in the amount of \$1,537.00 to Carlos. Quinn Aff., Ex. 2, pgs. 1-3.
17. Carlos did not object to the provision stating that payments for confirmed bookings would be non-refundable; he sent an email on November 30, 2022, stating: “Better we change the name on the invoice to my wife DINA PITEIRA, resto [sic] stays the same. Payment will be issued the same. We need your Bank data + swift code to issue transfer now. Send later copy of the transfer asap. Still missing the US trucking [sic] costs.” Quinn Aff., Ex. 2, pg. 1 (capitalization in original); Quinn Aff. pg. 2 at no. 8.
18. On December 5, 2022, Claimant sent the prepayment in the amount of \$1,567.00 (\$1,537.00 quoted charges plus + \$30 banking fee) by wire transfer to Sefco. Quinn Aff. pg. 2 at no. 8; C. Supp. Info, pg. 2 at no. 1; Sefco Supp. Info, Ex. Q12(c).
19. On December 6, 2022, Sefco requested a booking from ACL to ship Fiat # 1 from the Port of Baltimore to Antwerp, Belgium. Quinn Aff. pg. 2 at no. 10.

⁶ Claimant labeled her exhibits with numbers; however, the identifications used appear to be random and in no particular order.

20. On December 7, 2022, ACL confirmed the booking for Fiat # 1 and issued dock receipt number SA00889212 for the booking confirmation to Sefco. Quinn Aff. pg. 2 at no. 8; Quinn Aff., Ex. 3.
21. Sefco forwarded the booking confirmation to Carlos, who then asked Sefco to include the inland trucking costs to transport Fiat # 1 from where it was stored in Martinez, California, to the Port of Baltimore. Quinn Aff. pg. 2 at no. 8.
22. On December 8, 2022, using Reference # EX-11302022BACN-IL, Sefco updated the confirmation quote to include \$1,725 for trucking expenses “based on using Montway Transport for the cross-country trucking of one car from California to Baltimore.” Quinn Aff. pg. 2 at no. 10.
23. Montway Auto Transport (“Montway”) is “a trucking transportation broker with a network of car carriers offering door-to-door service hauling vehicles within the US and to and from international shipping carriers at US ports and airports.” R. Supp. Info, pg. 22 at no. 11.
24. In early December 2022, Car Export America sent the “basic title information (title number and state) needed to process the [electronic export information (“EEI”) declaration” to Sefco. Quinn Aff. pg. 2 at no. 11.
25. On December 8, 2022, Sefco filed the Automatic Export System (“AES”) EEI declaration using the information sent by Car Export America and received approval for the export of Fiat # 1, which it forwarded to Carlos and Car Export America. Quinn Aff. pg. 2 at no. 11.
26. Also, on December 8, 2022, Sefco issued dock receipt Number SA00889212 to Carlos, listing Car Export America as the exporter; Sefco as the forwarding agent; Claimant as the consignee and notify party; the place of receipt as Martinez, California; the Port of Loading as Baltimore, MD, the Port of Unloading as Antwerp, Belgium; the required documents for delivery as “Original Title, 6 copies of title (front and bank) and 6 copies of dock receipt;” type of move: “ro/ro, door/port, port/port;” shipment description: 2015 Fiat 500E, VIN: 3C3CFFGE5FT623257; and the domestic trucker as Montway. Quinn Aff. pg. 2 at no. 11; Quinn Aff. Ex. 3.
27. On December 11, 2022, Carlos sent an email to Sefco stating in pertinent part: “Dina is going to do the transfer in a few minutes, will add \$300 because of the parking fees. Parking Fees Boat/gary, should pay, not us . . . but OK! Wont do anything more with him/them Cars of America.” Quinn Aff. Ex. 4 (punctuation in original); Quinn Aff. pg. 2 at no. 12.
28. On December 12, 2022, Sefco received a scanned copy of the original title for Fiat # 1. Quinn Aff. pg. 2 at no. 13; Quinn Aff. Ex. 5 at pg. 1. Sefco sent a copy of the scan to Carlos on January 4, 2024, who confirmed its receipt on January 5, 2024. Sefco Supp. Info Ex. Q1(b) at pg. 1.

29. On December 12, 2022, Sefco notified Carlos by email that it would be sending the payment for Fiat # 1's storage charges to Autobidmaster when it opened for business and after that would "put in the order including the required full payment to the domestic transporter (Montway)." In addition, Sefco asked in pertinent part:

3) need to know, where's the original title? As noted on the dock receipt, the protocol for (Baltimore RoRo exports) is for the original title & copies of the title-with the dock receipt- these are to be with the vehicle to its [sic] handed in by the driver at the time the unit arrives at the Baltimore port terminal.

If its not with/in the vehicle, will need to figure out where there [sic] original title is, and how to get it to the vehicle/driver. Baltimore port is where the title ultimately needs to go, matched up with the vehicle.

There's no person just waiting at the port gate to receive & hold onto the paperwork pending arrival of the auto transporter – if it's not with the vehicle, so may need to contact the Dundalk Marine terminal/Baltimore port for their suggestion.

Original title:

If you can find out the disposition of the original, and if it's been reassigned, signed over to you (on the back of the title) that's important. The scan I received did not yet show it as being signed over to you from Gary's company Car America Export.

Quinn Aff. pg. 2 at no. 13; Quinn Aff. Ex. 5 at pg. 1.

30. On December 12, 2022, Sefco issued an invoice for \$1,725.00 to Carlos. Quinn Aff. Ex. 5 at pgs. 1-2.
31. On December 12, 2022, Carlos sent Sefco an email stating: "Dina just transferred you the pickup and parking fees of USD 330." Quinn Aff. Ex. 5 at pg. 1.
32. At the direction of Carlos, Sefco placed an order with Montway on December 14, 2022, to pick up Fiat # 1 (the gray Fiat 500E) by pre-paid open truck haulage from Martinez, California, for delivery to the Dundalk Marine Terminal in Port of Maryland for export shipping as Ro-Ro to Antwerp, Belgium. Sefco Supp. Info, pg. 22; *see* Sefco Supp. Info, Exs. 3 and 4.
33. On December 14, 2022, Sefco received a payment in the amount of \$2,055 from Claimant (representing \$1,725 for the trucking charges, plus the \$330 local storage charges owed for Fiat # 1). Sefco Supp. Info, Ex. Q12(c).
34. However, the charge for local storage for Fiat # 1 was \$465, not \$330; Sefco sent \$465 to Autobidmaster to cover the local storage costs, \$135 more than the amount sent by Carlos. Quinn Aff. pg. 2 at no. 14.

35. On December 15, Carlos notified Sefco that Car Export America had authorized release of Fiat # 1 to Montway for pick up and Sefco remitted a prepayment to Montway for the inland trucking of Fiat # 1. Quinn Aff. pg. 3 at no. 16; Quinn Aff. pg. 3 at no. 17.
36. Carlos continued to source additional cars to buy “and requested alternative rates for shipping from the US West Coast;” on December 12, 2022, Quinn from Sefco wrote to Carlos: “Can do 3 in 1x40ft container from Gardens [sic] CA whse [sic]but the ocean freights expensive, checking further on available SS Lines. Also can arrange 3 in 1x40ft contr from Houston TX warehouse which is around \$2k less for ocean freight compared to what I’m seeing from LA, so that’s an option too. Will send numbers over the weekend.” Sefco Supp. Info Ex. Q1(a) at pg. 6. Carlos responded on December 17, 2022, stating in pertinent part: “Texas can be an option, but you have the inland transport of 2 or 3 cars, which will be more than 2 K for LA for the container for sure! No stress, in the box and shipped here. 2 cars are guaranteed, for sure, unless things go wrong If the inland costs are over 2K, forget Texas, unless we find 1 or 2 cars there to buy.” Sefco Supp. Info Ex. Q1(a) at pg. 6.
37. On December 19, 2022, Sefco issued a rate quotation to Carlos, Ref# EX-12192022GLCN FCL for export service from Schumacher’s California warehouse to the port in Lisbon, Portugal, of a full container load service containing “two or three small electric vehicles,” 1 x 40’ high cube container at a charge of \$9,300 for two vehicles or \$9,790 for three vehicles. The rate quotation document noted in pertinent part: “This rate provides the currently available rate from the ocean carriers available for this route, currently not cheap. The next option would be via Houston CFS warehouse, at a cost of approx \$2k less.” Quinn Aff. Ex. 6.
38. Carlos asked Sefco to redirect the Fiat # 1 so that it could be stored at Schumacher’s warehouse in Gardena, California, for shipping to the port in Lisbon, Portugal. *See* Quinn Aff. Ex. 7. On December 19, 2022, Sefco sent an email to Carlos titled “US Export Ref: EX-12192022GLCN FCL export service (Sea/Full Container Load Shipment) Route: Gardena, CA to Lisbon, Portugal / Warehouse to port,” stating in pertinent part:

Rates have been sent to you. **Suggest we book with our Gardena, CA WHSE FCL option.** This can be a complex arrangement and the ops manager there is quite capable.

Current Notes – see below –

The Domestic trucker MONTWAY set up a driver but that panned out, and they have it out again for dispatching. Their charges CA to Baltimore have been prepaid.

However, I can ask them if they can offer to re-direct, instead of Baltimore, to route it to Gardena CA WHSE, to add to other vehicles you are buying. Not sure of their policy to redirect but this may be achievable. Welcome your feedback.

Quinn Aff. Ex. 7 at pgs. 1-2 (emphasis and capitalization in original). On December 19, 2022, Carlos responded to Sefco's December 19th email as follows: "Container from CA is OK. 40ft we can put 3 Fiats inside What do we do . . The cost from the auction park is not too far from LA . . . The[y] will credit the amount. Now we have the parking fees. . . . **Can the Fiat 500e that is paid be taken to the port/warehouse to avoid more fees . . .**" Quinn Aff. Ex. 7 at pgs. 1-2. (emphasis added). Sefco then replies: "I just sent a message to Montway asking if they could advise me on the option of delivering the current Fiat to the Gardens [sic] CA warehouse instead and they will get back to me[.] I'm sure it's cheaper than bringing it cross country and I could easily credit you any differential there." Quinn Aff. Ex. 7 at pg. 1.

39. On December 21, 2022, Sefco informed Carlos:

- 1) ACL RoRo cancelled per below.
- 2) called autobidmaster, confirmed theres [sic] no extra charges outstanding on the 2015 Fiat, lot # 66516962
- 3) Montway called me, asked if above unit is ready today/now for pickup, they located a different driver/co to do right away, small difference in charge for driver ready today, I ok'd it to get it moving asap.

Per Montway that driver plans to deliver to Gardena whse tomorrow.

I already have SCL/LA whse a heads up.

Will move ahead to fill in SCL whse forms etc, for the container, and will then process 2nd p/up request as soon as possible.

Quinn Aff. Ex. 10, at pgs. 1-2 (Email from Quinn, with screenshot of cancellation notice to ACL for the ACL Ro/Ro from Baltimore to Antwerp and acknowledgment from ACL stating: "Thank you for advising. Now cancelled.").

40. On December 21, 2022, in an email to Quinn, Carlos states: "Sorry for all the mess and confusion, Rgd the Fiat 500e I bought from Gary Boats and cars!" Quinn Aff. Ex. 11, at pg. 1. On the same day, December 21, 2022, Quinn writes: "cc: CN / simply for your info, cancelled ACL RoRo booking, will also update/cancel the EEI filed, since it will be refiled with the container shipment. Will keep you posted. Have a great day." Quinn Aff. Ex. 11, at pg. 1.
41. Montway picked up the car on December 30, 2022, and delivered it on January 3, 2023, to Schumacher's warehouse. Quinn Aff. pg. 4 at no 26; Quinn Aff. Ex. 13 at pg. 4.
42. In addition, at Carlos' request, Sefco placed another order with Montway to pick up Fiat # 2 from northern California and deliver it to Schumacher's facility for export by container to Lisbon, Portugal. Montway picked up the car on January 4, 2023, and delivered it on January 5, 2023. Quinn Aff. pg. 4 at no 21; Quinn Aff. Ex. 8 at pg. 1, and Ex. 9 at pg. 1.

43. On January 3, 2023, Sefco followed up with Carlos in an email titled: “**BOOKING# LGB0097929 / DINA PITEIRA -whse address and additional support contact/activated for help this project,**” containing the following pertinent information:

1) The address for the warehouse is shown on the previous email, shown below.
2) Per previous emails, the 2nd unit has already been ordered for pickup via Montway. . . . Will also bill the Ro/Ro booking, cancelled, with credits applied in due course. More on that in the coming days.

Sefco Supp. Info Ex. Q1(a) at pg. 11 (emphasis and capitalization in original).

44. Another email from Sefco to Carlos on January 3, 2023, titled: “Fwd: FCL order confirm & addl info, Title Fiat 500D 2015 Vin: 623257,” states:

Attached please find:

PDF scan of title 2015, 6 pg, will be relayed (again, following our preadvise) to the LA operations, SCL Schumacher, who will process the US customs export validation.

Also attached: is there [sic] POA for export processing [of] the titles with US customs, please sign and return.

The order/booking confirmation details [end of message]:

Sefco Supp. Info Ex. Q1(b) at pg. 3 (the rest of the email was not submitted).

45. Also, on January 3, 2023, Sefco sent an email to Shumacher employee, Krystal, titled “**Fwd: LGB0097929 / DINA PITEIRA – Title Fiat 500E 2015 Vin: 623257,**” stating:

Attached please find a scan of the title of 1 of 2 cars to be containerized. Am expecting further info on the tit[l]e # 2, in the coming days, and will advise accordingly. Have sent your POA to be signed [a]nd returned. I’ll follow up on such matters in due course.

Sefco Supp. Info Ex. Q1(a) at pg. 11 (emphasis and capitalization in original).

46. On January 4, 2023, Quinn from Sefco indicates that there are problems with the titles for the Fiats, stating in pertinent part:

I don’t have a copy of any of the 2nd cars documentation besides auction invoice; meaning of the title for the 2014 unit . . . but I expect that when the vehicle arrives at the warehouse, they will send me a warehouse arrival notification . . . at that time I’ll look for any title that may be with the vehicle itself, and see if I could have them scan it – I’m sure they can do that – and I’ll send you a copy once on-hand and available for your information.

Regarding the first unit 2015

I have not sent this original title to LA yet because I'm not sure if I need to make any changes to the title on your behalf ...which is something I've never done before or just send it to LA as is (as normal) and hope that they can figure it out.

I only see the sellers DBA name, "Ship Boat etc" or whatever it shows on the scan; their invoice is another name "Cars etc." There should be an easy to see ownership trail, for export clearance. Will prefer to get LA's feedback after both units are in, and they can see both titles, as of now they only see the 2015 first unit. I've already sent a PDF copy scan of the 2015 title to them/LA-SCL, for review . . . I also provided an informational copy of the signed SEFCO POA, in Dec. from Cars Export/Gary (there was a different first name on that form, maybe a relative of Gary's, no idea . . .)

End of December I saw a different first name on my company caller ID on a message left by Gary, just fyi...

Sefco Supp. Info Ex. Q1(b) at pg. 3.

47. On January 5, 2023, Carlos responded:

Thanks for having sent me the Title of the 2015 Fiat. What we don't have is of the 2014 Fiat 500e from Antelope CA. They are asking for more money . . . These guys are real mafia....They had the Title but no word that they had the Title for us. So they kept the parking fees, falling, because this more there business than the auctions Let's try to solve this sh[i]t fast, really boiling up! Fedup...is the correct term. Sorry ...

Sefco Supp. Info Ex. Q1(b) at pg. 4 (spelling, punctuation and grammar in original, emphasis added).

48. On January 5, 2023, Sefco sent the original copy of the title for Fiat # 1 to Schumacher by UPS courier. Sefco Supp. Info Ex. Q7.
49. Also, on January 5, 2023, Krystal Maciel at Schumacher expressed concerns with the title for Fiat # 1, noting in pertinent part: "Another issue, whomever the buyer is, needs to be on the actual title. As customs is no longer accepting reassignments (262 forms / title extensions). Meaning, all dealers should of completed the back side title or a new title needs to be provided." Quinn Aff. Ex. 15 at pg. 10.
50. On January 5, 2023, Sefco sent an email to Carlos confirming receipt of Fiat # 2 at Schumacher's warehouse. The attached receipt contained the following information:

Receipt #: WR00155945; Date: 1/5/2023
Shipping Instr: LGB0097929
Third Party: JOSEPH QUINN SEFCO EXPORT

Shipper: DINA PITEIRA; Consignee: PITEIRA DINA
Origin: LONG BEACH; Destination: LISBON
Year: 2014; Body: 2 DOOR SEDAN
Make: FIAT; Model: 500; Color: Orange

Sefco Supp. Info Ex. Q1(b), pg. 9.

51. On January 5, 2023, Sefco sent an invoice for \$8,702.50 to Carlos by email with the subject line: “Our Ref# EX-12192022GLCN / EX-11302022BACN / statement of account -USA – Portugal shipment,” and Claimant Dina Piteira listed as the billed party. The invoice listed total charges for \$8,702, comprising:

- \$420.00 – for the booking of the Ro/Ro for Fiat # 1 from Baltimore to Antwerp (Booking #SA00889212);
- \$1019.00 for Montway inland transportation of the Fiat from Martinez, CA and delivery to Gardena, California (Order # 1677272);
- \$999.00 for Montway inland transportation of another Fiat from Antelope, California and delivery to Gardena, California (Order # 1687608);
- \$511.50 for the \$465 accrued local charges on the Fiat #1, including \$46.50 for financing the payment
- \$1600.00 for origin charges for the two cars at Gardena, California;
- \$150.00 for preparation of bills of lading for two cars for export through customs;
- \$6650.00 for ocean freight;
- \$900 for hazardous surcharge for the two electric vehicles;
- \$75.00 for UPS charges to deliver the original title transfer from Sefco in New York to Shumacher’s warehouse in Gardena, California

Total: \$9375.00 –
Credits: \$2,055 prepayment on December 14, 2022, and \$1,567 prepayment on December 6, 2022 (Total: \$3,622)
Balance due: \$8,702.50

Quinn Aff. Ex. 13, pgs. 1-5.

52. On January 6, 2023, Carlos sent an email to Quinn, stating in pertinent part: “Sorry, for all the changes and sh[]t we have done in the last 2 months. Sending you papers signed tomorrow. Hoping we can ship these s[]t cars fast. 20ft container may work with two Fiats 500e, with some ramps for the 2nd Fiat to fit in.” Quinn Aff. Ex. 14, pg. 1.
53. On January 9, 2023, Carlos informed Sefco that he had received an “interesting quote to ship the two cars” and that “I will pay your work, but I think this Shipping and price will be good. I am this [sic] is the best we will get.” Sefco Supp. Info Ex. Q2(c) at pg. 1.
54. Further on January 10, 2023, Carlos informed Sefco:

1. Cannot accept the \$8700 for the 2 Fiats. Not even for expensive cars. Maybe for a Bugatti...of 2 million dollars. Cannot accept this amount for the 2 shi[]y Fiats. And instead of making money i will loose more than 25% of what i am investing.

2. \$2000 LA-Belgium-Antewerpia is OK for the Fiat in Container sharing. And we have no other solution at the moment. Have not chkd anything...but Werner gets his cars in Bremerhaven and Rotterdam in this system. He gave Schumacker my contact, and they sent me offers from LA/Belgium, for 2000K all included-minus special insurance.

3. Conatiner sharing – Can you get the container sharing? This gives us the oportunity to continue to buy some cars in CA. The inland truckking and East coast RO-RO solution are good but the bill goes up radicaly. I am not importing cars for fun, i have to make some profit. And i pay everybody and i am the last 1 to get my part. . .and too much time and money invested to make few bucks If i make less than 20% not worthwhile doing the business.

We prefer you do all for us, give us news asap, More news later,

Sefco Supp. Info Ex. Q2(c) at pg. 2 (spelling, capitalization and punctuation in original).

55. On January 10, 2023, Sefco responded in pertinent part:

1) answering on 2 cars in 1x20 ft, as per previous email, not possible.

2) confirm if SCL/Portugal booking is to be cancelled and changed to Rotterdam; as per previous email/quote; the consolidate to there and not Antwerp.

Then the issues with titles need to be addressed:

1) possibly requiring seller to provide clean titles with Dina's name on it per previous email observation from Krystal who handles such matters.

2) find 2nd title, if with the 2nd vehicle. Must give SCL/LA whse clear instructions, with their required docs/POA, as that holds things up awaiting that.

Sefco Supp. Info Ex. Q2(c) at pg. 5. Carlos responded: "Let's go Holland...share container for these 2 cars." Sefco Supp. Info Ex. Q2(c) at pg. 5.

56. Sefco continued to express concerns about the titles, stating again January 10, 2023:

If one of the titles (1st 2015 unit) will be rejected by US Customs due to only sellers name showing and @ 6 reassignments, thats a problem, needs to be addressed. Maybe send bac to seller to correct. Krystal/SCL may

comment but to do such work she first needs your POA. Ask seller of unit 2, 2014, where is the title? If that title (2014) is clean, transferred to buyer/Dina, and all in order (POA signed and original title in Krystal's hands) then that may go in the Rotterdam FCL consolidation, awaiting resolution of title on unit 1.

Otherwise, loading 2 cars in 1x40 FCL will not work if one of the 2 titles is rejected by Customs. Awaiting POA etc thanks.

Sefco Supp. Info Ex. Q2(c) at pg. 6 (spelling, punctuation, and abbreviation in original). Carlos replied the same day: "Documents you need are down below: If you can only ship 1 now, in the shared container for us, is OK. . . . Documents: Joining below: Dina Piteira ID. POA will go later, when she arrives at home." Sefco Supp. Info Ex. Q2(c) at pg. 6 (spelling in original).

57. Carlos directly contacted Schumacker requesting quotes for the shipments at the same time Sefco was requesting quotes from Shumacher for the same shipments. Quinn Aff., pg. 4 at no. 28. On January 10, 2023, Sefco quoted the cost to ship the two Fiats to Antwerp, Belgium, and Carlos responded: "Just got another 2 offers from Schumacker....they keep sending me offers. The cost to Antwerp or Rotterdam is \$4200K for the 2 Fiats 500e all included." Quinn Aff. Ex. 15, pgs. 6-7 (spelling in original).
58. Quinn then emailed Filip at Schumacher the same day, January 10, 2023, stating in pertinent part:

[F]or your information you're quoting against me for this same customer for whom you have two vehicles already booked by Sefco and on-hand; and I let him know that if he wants to cancel with me and have someone else handle everything that's fine by me – and he's indicated interest in switching this current booking with Sefco/SCL to shipping it in a consolidation [sic] SCL container to Rotterdam which we quoted based on your rate in November – it its chances, I told him that he needs to refill in our shippers letter of instructions form in order to proceed with any new or different booking. I am informed to expect the signed POA later today which I'll send along to Krystal/SCL.

Quinn Aff. Ex. 15, pgs. 5-6; C. Supp. Info, Ex. pgs. 1-2 (labeled "5B") (spelling and punctuation in original)). Schumacher responded the same day, explaining:

I wasn't familiar with the background info. If a client reaches out to us directly I have no idea whom of our sales people is quoting him.

I was just asked to quote 40' FCL to Antwerp instead of to Portugal on current booking.

If anyone else quoted and was told Fiat 500 (instead of Fiat 500E), he would have gotten an incorrect rate. For any vehicle that is electric we

charge \$900 for the Hazardous surcharges from carrier/trucker/DG Declaration etc. Regular Fiat would indeed been \$4200 for two in a shared container.

Quinn Aff. Ex. 15, pgs. 4-5. Quinn replied: “Thanks and yes, I have informed him of the invalidity of a quote for gas cars, being used for EV’s which incur extra costs. I’m awaiting their SCL POA and my updated Sefco Export – Shippers Letter of Instructions, so things are clear and we’ll go ahead from there.” Quinn Aff. Ex. 15, pg. 4.

59. On January 13, 2023, Quinn informed Schumacher:

[E]vidently my customer will be canceling my order, so please cancel it in the SCL system and my customer will become your custome[r]; he’ll be dealing with you directly.

I’ve informed him that the rate he got from Schumacher was not for electronic vehicles and the rates for electronic vehicles is more; I’ve also informed him that there seems to be an issue with the first title to the car which he’ll need to resolve; he’s aware of that but please him him fill out your forms and you can proceed from there. He’s been a good client for me in the past and I hope he’ll be a good client for you in the future.

All current accrued and future charges will be for his account under the name Carlos Neves and/or Dina Pitiera [sic] (Mr/Mrs), thank you.

Quinn Aff. Ex. 14, pg. 3; C. Supp. Info, Ex. pg. 3 (labeled “AF”). Filip from Schumacher confirmed that Carlos had hired Shumacher to deliver the shipments, stating:

I spoke with Carlos and he’s in good hands.

He explained it was because the freight was more than the value of the cars almost and it’s not for resale. One is for his daughter.

He had me look in to RORO to Zeebrugge from Galveston.

He will use us for sure.

So it wasn’t anything personal between Sefco and him or Schumacher and him. He just wants to save money because it’s for personal use.

Quinn Aff. Ex. 15, pg. 2.

60. On January 13, 2023, Filip at Schumacher emailed a quote for \$5,200 to Carlos, comprising \$4,500 RORO charges plus \$900 hazardous fee from Galveston, Texas to Zeebrugge, Holland, in a shared container. Schumacher Supp. Info, Ex. 2 at pg. 2. Carlos responded:

Thanks for your fast reply and news! Texas is better! For 2 reasons: Inland invoice I can pay separately and I don't have to give it to customs in Europe. Meaning I save 31% on \$1700! I save \$700 on the Total costs! In the end all these less costs will my [missing word] Lose! End of month gives us time to do all w/o stress! So I will prepare a \$4500 transfer to your account! And thanks for the good news! If all goes OK you have a future customer! I buy average 20-50 cars per year from the USA!

Schumacher Supp. Info, Ex. 2 at pg. 1.

61. On March 14, 2023, Sefco emailed an updated statement for \$1,920.00 to Carlos, with Claimant as the billed party, for: cancellation charges of \$750.00 for the ACL Booking, cancellation charges of \$750.00 for the Shumacher Booking, and \$420.00 for the preparation of the export documents. Quinn Aff. Ex. 17, pg. 1.
62. After receiving the original titles for the two vehicles, Schumacher “established [that the] vehicles cannot be legally exported from the USA due to discrepancies in Title Ownership to Export Declaration.” Schumacher Supp. Info, pg. 2 at no. 15
63. The title for Fiat # 1 lists the registered owners as “Kelly Ryan David or Kelly Ashley RA” [the rest of the name is obscured by a document copied over it]; however the title transfer document shows a bill of sale from “A & Z Auto Dealer” to Autobidmaster. Neither Carlos nor Claimant’s name appears on the title or title transfer documents. Claim, pgs. 30-32 (exhibits labeled “FE,” “FEE” and “FEEE.”); *see also* C. Supp. Info, Ex. pgs. 25-26 (exhibits labeled “11B” and “11C”).
64. Claimant and Carlos were ultimately unable to cure the deficiency with the titles for the cars, making it impossible to export them. *See* Sefco Supp. Info, pgs. 29-30 (stating: “The proximate cause for failure of the intended export shipments was the inability of . . . Carlos Neves . . . to obtain and timely present titles of ownership in forms appropriate for export of the two vehicles involved . . . No amount of expedited or delayed handling of a given title will change the quality of the document itself, if it is missing/defective/unusable; it remains missing/defective/unusable that is, unless and until, perhaps the document can be and actually is legally re-issued through the initiative and efforts and expense of the vehicle’s owner title-holder-of record . . . No good title = no export shipment.” *See also* Schumacher Supp. Info, pg. 2 at no. 15 (stating that after receiving the original titles for the two vehicles, Schumacher “has established [that the] vehicles cannot be legally exported from the USA due to discrepancies in Title Ownership to Export Declaration. Schumacher is at no fault being unable to export vehicles till customer provides accurate supporting export documentation to satisfy U.S. Customs export requirements.”).

65. On February 19, 2024, Carlos wrote to Montway, stating in pertinent part:

. . . we are having problems with the cars and with a Shipping of the cars.
It is now 14 months and we haven't been able to ship the cars anywhere,
and only stupid situations, and stunts, from all sellers, exporters....
At first there was the problem rgd the Titles, when we were told they were
given to Montway drivers. Would have been the best solution...
The people and Compnaies we got mixed up with are real crooks!
This was Autobidmaster fault. They told us that they were given to the
drivers. They lied to us...really bad thing to do!

Sefco, NY (Joesph Quinn) requested your service in the end of December
2022, and your Company took the cars to the LA/port, and left them in the
beginning of January 2023. Sitting there since that date. Crazy!

C. Supp. Info, Ex. pg. 18 (exhibit labeled "Doc. 2C"). However, Montway declined to discuss the issue, stating in pertinent part: "For any issue, inquiries, or updates regarding an order, we kindly request that the main customer reach out to us directly. Due to privacy and security reasons, we can only discuss the matter with the designated main client." C. Supp. Info, Ex. pg. 17 (exhibit labeled "Doc. 2B"). Montway also suggested that Carlos contact Sefco to resolve any issues. C. Supp. Info, Ex. pgs. 37-38 (exhibits labeled "M1 and M2").

66. Both vehicles are stored at Respondent Schumacher's Gardena, California warehouse. Invoices issued by Schumacher to Claimant between December 20, 2023, and March 5, 2025, indicate that Claimant owes \$16,060 in storage charges to Schumacher. C. Supp. Info, Ex. pg. 39 (exhibit labeled "PG4 A").

67. On January 20, 2025, Schumacher sent an email to Carlos, stating:

Please note the following important information with reference to your
two Electric Fiat's still presently in our warehouse"

We will provide you 15 days from today to remove both vehicles from our
warehouse here in Gardena, CA.

If removed within these 15 days we will not charge you any warehouse
storage fees. All storage costs for the past nearly 2 years will be waived.

However, if not removed within 15 days we will place a Lien on both
vehicles.

If you intend to pick-up the vehicles, please let us know 24 hours in
advance who your appointed transporter is.

Sefco Supp. Info Ex. Q16(b).

68. Claimant did not respond to Schumacher's ultimatum; however, according to Schumacher, the vehicles "are available for immediate release to Claimant Dina Piteira . . . without further delay, penalties or storage charges." Schumacher Supp. Info, pgs. 1-2 at nos. 14-15; Schumacher Supp. Info, Ex. 3 at pgs. 1-10. C. Supp. Info, Ex. pg. 39 (exhibit labeled "PG4 A. 2B").
69. Sefco only received the original title for one car – the Fiat # 1 – which it turned over to Schumacher by UPS courier on January 5, 2023, and emailed a copy of the UPS tracking information and receipt to Carlos. Sefco Supp. Info, pgs. 20-21 at no. 8 and its exhibit 8(a) at pg. 4.
70. Regarding the title for Fiat # 2, Carlos stated on January 10, 2023: "The 2nd Title is with Autobidmasters. We are just waiting to solve the accounting problem they created" Sefco Supp. Info Ex. 8(a) at pg. 1.
71. Although a salvage certificate was issued for Fiat # 2, Claimant contends that "both cars were sold as driving and running, despite the [Fiat # 2] having some front damage to repair." Claim, pg. 4; Sefco Supp. Info Ex. Q8(a) at pg. 21).
72. Claimant does not want the Fiats. Claim, pg. 4; *see also* email from Carlos to Gary at SEA dated March 7, 2024, stating in pertinent part: "WE don't want the cars, they are scap, and just want our money...and loss!" Claim, Ex at pg. 44 (exhibit labeled "IA").
73. Claimant seeks an award for damages totaling \$18,813, including \$12,401.00, claimed as the value of both Fiats. Claim, pg. 4.
74. The documents submitted by Claimant as proof of Claimant's payments to CEA and Autobidmaster to purchase the Fiats are in Portuguese, a foreign language, and Claimant did not submit a translated version. Claim, pgs. 20 and 21 (Exs. labeled "CA" and CB").

III. DISCUSSION

A. Controlling Authority

Respondents Sefco and Schumacher are ocean transportation intermediaries. Shumacher is licensed as a non-vessel-operating common carrier ("NVOCC") and Sefco is licensed as an ocean freight forwarder. "The term 'ocean transportation intermediary' means an ocean freight forwarder or a non-vessel-operating common carrier." 46 U.S.C. § 40102(20). An "ocean freight forwarder" is a person that –

- (A) in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers; and
- (B) processes the documentation or performs related activities incident to those shipments.

46 U.S.C. § 40102(19). A non-vessel-operating common carrier is “a common carrier that does not operate the vessels by which the ocean transportation is provided and is a shipper in its relationship with an ocean common carrier.” 46 U.S.C. § 40102(17). A “common carrier” is a person that –

- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation;
 - (ii) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and
 - (iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country
-

46 U.S.C. § 40102(7). The term “shipper” means –

- (A) a cargo owner;
- (B) the person for whose account the ocean transportation of cargo is provided;
- (C) the person to whom delivery is to be made;
- (D) a shippers’ association; or
- (E) a non-vessel-operating common carrier that accepts responsibility for payment of all charges applicable under the tariff or service contract.

46 U.S.C. § 40102(23).

Claimant alleges that Respondents violated section 41102(c) which provides: “A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). In order to establish a successful claim for reparations” under section 41102(c), the claimant must demonstrate that:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

B. Evidence and Burden of Proof

“In all cases governed by the requirements of the Administrative Procedure Act, 5 U.S.C. 556(d), the burden of proof is on the proponent of the motion or the order.” 46 C.F.R. § 502.203. A person alleging a Shipping Act violation, therefore, bears the burden of proof to demonstrate its allegations by a preponderance of the evidence. 46 C.F.R. § 502.203; 5 U.S.C. 556(d); *Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). The term, “burden of proof” is understood to mean “the burden of persuasion.” *Director v. Greenwich Collieries*, 512 U.S. 267, 276 (1994). When the party with the burden of persuasion produces sufficient evidence (characterized as a prima facie case), the burden of production shifts to the other party to produce evidence rebutting that case. *In re South Carolina State Ports Auth. for Declaratory Order*, Docket No. 94-24, 27 S.R.R. 1137, 1161 (FMC Aug. 12, 1997); *Steadman v. SEC*, 450 U.S. 91, 101 (1981) (“Where a party having the burden of proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted.”). When direct evidence is unavailable, inferences may be drawn from certain facts and circumstantial evidence may be sufficient so long as the fact finder does not rely on mere speculation. *Waterman S.S. Corp v. General Foundries, Inc.*, Docket No. 93-15, 26 S.R.R. 1173, 1180 (ALJ Dec. 9, 1993) adopted in relevant part, 1994 WL 279898, 26 S.R.R. 1424, (FMC June 13, 1994). If the evidence produced by both parties is evenly balanced, the party with the burden of persuasion will not prevail. *Greenwich Collieries*, 512 U.S. at 281.

C. The Record Does Not Demonstrate that Respondents Violated Section 41102(c) or any Provisions of the Shipping Act

To prove her allegation that Respondents violated section 41102(c) Claimant must prove that they “failed to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C § 41102(c). Pursuant to section 545.4, Claimant must specifically demonstrate that the following five elements are present: 1) that Respondents are ocean common carriers, marine terminal operators, or ocean transportation intermediaries; 2) the alleged illegal conduct is “occurring on a normal, customary, and continuous basis;” 3) the alleged practice or regulation relates to or is connected with receiving, handling, storing or delivering property; 4) the alleged practice or regulation is unjust or unreasonable; and, 5) the alleged practice or regulation in question is the proximate cause of the loss allegedly suffered. 46 C.F.R. § 545.4. Failure to demonstrate any one of these five elements prevents a finding of a section 41102(c) violation.

For the reasons discussed below, I do not find that Respondents acted unjustly or unreasonably, I thus conclude that they did not violate section 41102(c). Claimant’s allegations are either contradicted by the record or unsupported by the evidence. There is no evidence that Respondents colluded to hide Claimant’s documents or that they abandoned her cars at the Port of Los Angeles, as alleged. Presumably, the documents Claimant refers to are the titles for the Fiats, which she alleges were provided to Sefco but Sefco denied receiving, allegedly to sabotage efforts to export the cars; and Schumacher also denied receiving, allegedly in order to claim storage charges for the vehicles.

The emails between the parties do not suggest that Respondents lied that they hadn’t received the original titles when they had those titles in their possession or that Respondents hid

the titles from Claimant or Carlos, as alleged by Claimant. The evidence shows that on December 11, 2022, Sefco received a scanned copy of the title for Fiat # 1 from the seller, which it forwarded to Carlos, Claimant's husband. PF 28. Further, Sefco sent the original copy of the one title that it had – the title for Fiat # 1 – to Schumacher by courier on January 5, 2023, and notified Carlos by emailing him a copy of the UPS tracking number and receipt. PF 68; Sefco Supp. Info Ex. 8(a). On January 5, Carlos stated to Sefco: “**Thanks for having sent me the Title of the 2015 Fiat.** What we don't have is of the 2014 Fiat 500e from Antelope CA. They are asking for more money” PF 47; Sefco Supp. Info Ex. Q1(b) at pg. 4 (emphasis added). This statement by Carlos directly contradicts the allegations that Respondents hid the title for the car from Claimant or Carlos and it undermines Carlos' credibility. As for the title for the second Fiat, Carlos acknowledged in an email on January 10, 2023, that the title was still with Autobidmasters, the seller, and that “[w]e are just waiting to solve the accounting problem they created.” See PF 69.

Further, the record contains multiple communications between the parties in which Respondents noted problems with the titles that needed to be corrected in order to successfully export the vehicles. See, e.g., PF 29 (Sefco indicating that it had received a scan copy of the original title and that it showed that CEA, the purchaser on behalf of Carlos, had not yet reassigned the title to Carlos); PF 46 (Sefco indicating that it had not yet sent the original title for Fiat # 1 to the Los Angeles facility because the title was reflecting two different names in the seller's column and that “[t]here should be an easy to see ownership trail, for export clearance.”); PF 49 (Schumacher indicating a problem with the title for Fiat # 2 because the buyer's name was not reflected on the title and “customs is no longer accepting reassignments (262 forms/title extensions) Meaning, all dealers should of [sic] completed the back side title or a new title needs to be provided”); PF 56 (Sefco expressing concerns about the title for Fiat # 1, stating:

If one of the titles (1st 2015 unit) will be rejected by US Customs due to only sellers name showing and @ 6 reassignments, thats a problem, needs to be addressed. Maybe send back to seller to correct. . . Ask seller of unit 2, 2014, where is the title? It that title (2014) is clean, transferred to buyer/Dina , and all in order (POA signed and original title in Krystal's hands) then that may go in the Rotterdam FCL consolidation, awaiting resolution of title on unit 1. Otherwise, loading 2 cars in 1x40 FCL will not work if one of the 2 titles is rejected by Customs. Awaiting POA etc thanks.

Sefco Supp. Info Ex. Q2(c) at pg. 6 (spelling, grammar, and punctuation in original)).

Therefore, the record does not show that Sefco or Schumacher hid any documents from Claimant or Carlos or tried to use the titles to exploit them for money; rather, the evidence suggests that the inability to export the Fiat resulted from a deficiency in their titles. See also PFs 62-64 (discussing deficiencies with the title). Schumacher indicates that it is willing to waive all its charges for the Fiats (PF 67; Schumacher Supp. Info, Ex. 3 at pgs. 1-10), so it does not appear that it stands to benefit from the storage of the Fiats at its facility.

Similarly, the evidence disproves Claimant's allegation that the Fiats were shipped to Baltimore without their knowledge and that they did not authorize the cancellation of the

booking confirmation to ship Fiat # 1 from the Port of Baltimore to Antwerp, Belgium. The record shows that Carlos instructed Sefco to redirect Fiat # 1 to Schumacher's facility in California for combined shipping with Fiat # 2, and that Sefco and Schumacher kept him fully apprised of all arrangements regarding the shipping of the vehicles and he consented to those arrangements. *See* PF 38; Quinn Aff. Ex. 7 at pgs. 1-2 (Carlos asking Sefco to redirect Fiat # 1 from delivery to the Port of Baltimore and store it at Schumacher's warehouse in California for shipping to the port in Lisbon, Portugal); PF 39 (Sefco advising Carlos that the Ro/Ro booking had been cancelled per his instruction); PF 40 (Carlos apologizing to Sefco for the cancellation, stating: "Sorry for all the mess and confusion, Rgd the Fiat 500e I bought from Gary Boats and Cars!" and Sefco again updating Carlos about the cancellation of the Ro/Ro booking and the AES EEI filing); PFs 43 (Sefco advising Carlos of the location of Schumacher's warehouse where the Fiats were delivered and that Sefco would issue a bill for the cancellation of the Ro/Ro); PF 50 (Schumacher confirming receipt of the Fiats at its warehouse and Sefco forwarding confirmation to Carlos).

Further, the record shows that Carlos requested and received a quote from Schumacher for shipping the Fiats to Antwerp, Belgium, or Rotterdam, Holland. PF 57; *see also* PF 58 (Sefco inquiring from Schumacher why it is "quoting against me for this same customer for whom you have two vehicles already booked by Sefco" and Schumacher responding that the "client reache[d] out to us directly . . .to quote 40' FCL to Antwerp instead of to Portugal.)." Sefco subsequently notified Schumacher that Carlos had asked to cancel Sefco's order with Schumacher and would now be dealing directly with Schumacher. PF 59. Schumacher then responds that Carlos "explained that it was because the freight was more than the value of the cars," that he had asked Schumacher to "look into RORO to Zeebrugge from Galveston" and that Carlos would "use us for sure." PF 59. Following that email conversation, Schumacher emailed a quote for \$5,200 to Carlos for RO/RO charges, comprising \$4,400 for the RO/RO charges plus \$900 hazardous fee from Galveston, Texas, to Zeebrugge, Belgium, and Carlos replied "Thanks for our fast reply and news . . . I will prepare a \$4500 transfer for your account." PF 60. The evidence thus shows that the cancellation of the Baltimore RO/RO booking was requested by Carlos and that the Fiats were stored at Schumacher's warehouse at Carlos' request.

As for Claimant's allegation that Sefco improperly withheld refund of their prepayments for the shipping of the Fiat and withheld a refund Montway allegedly confirmed it issued to Sefco, the evidence shows that Carlos was timely notified that any payments for a firm carrier booking would not be refunded, but he nevertheless authorized Sefco to confirm the booking for Fiat # 1 and sent a payment for the booking. The quote confirmation issued to Claimant/Carlos in November 2022, prior to those prepayments clearly stated: "**Your payment for a firm carrier booking is non-refundable.**" PF 15; Quinn Aff. pg. 1 at no. 6, Quinn Aff., Ex. 1, pgs. 4, 11, 22 (emphasis added). Carlos did not object to that provision but instead, asked Sefco to change the billing party information to reflect Claimant's name and to provide Sefco's banking details; Claimant then made the first pre-payment in the amount of \$1,537.00 on December 5, 2022, and the second prepayment in the amount of \$2,055 after that. PFs 16-18, 22, 27, 29-31, 34.

Moreover, Sefco performed freight forwarder services for Claimant and Carlos, for which it reasonably required compensation, including, at the very least, the following services:

- Researched available ocean transportation services multiple times and booked ocean transportation for Claimant and Carlos' vehicles multiple times as Carlos continued to request bookings and change those bookings as he investigated alternative and cheaper ways to ship his vehicles (PFs 12-14, 36-45, 51-52);
- Issued a dock receipt for Fiat # 1 (PFs 19-22, 26);
- Researched and obtained trucking for the cars (PFs 21-23, 32, 35, 38-39, 41-43);
- Processed required export documentation information for Fiat # 1 (PFs 24-25);
- Issued a payment of \$465 at Carlos' request to the seller's facility for the local storage charges for Fiat # 1 prior to pick up of the car by the trucker (PFs 27, 29, 31 33); and
- Paid Montway on behalf of Claimant/Carlos for delivering the cars to Schumacher's facility in California (PFs 29-35, 41, 42).

Claimant suggests that Montway confirmed that it refunded to Sefco the charges for the cancelled Baltimore trucking services; however, no evidence was provided to support the claim, while there is evidence that Montway delivered both Fiats to Schumacher's warehouse, as arranged and was paid by Sefco for the deliveries. PFs 41-43, and 50 (confirming delivery); *see also* PF 63, C. Supp. Info, Ex. Doc 2B at pg. 18, and Exs. M1 and M2 at pgs. 37-38.

Therefore, although it is found that Respondents are ocean transportation intermediaries, and the alleged conduct is in connection with the delivery of property, satisfying the first and third elements under section 545.4, Claimant fails to demonstrate that Respondents acted unjustly or unreasonably, a necessary element for a finding that they violated section 41102(c). Moreover, even if Respondents had been found to have acted unjustly and unreasonably, which they are not, Claimants fail to show that Respondents are engaging in the alleged conduct "on a normal, customary, and continuous basis, another required element. Further, since the evidence indicates that the vehicles at issue cannot be exported due to deficiencies in their titles, Claimant fails to demonstrate that Respondents are to blame for her inability to export the Fiats and thus, fails to establish proximate cause. Therefore, Claimant fails to demonstrate that Respondents violated section 41102(c), as alleged.

IV. CONCLUSION

Claimant Dina Piteira fails to demonstrate that Respondents violated section 41102(c). Accordingly, it is hereby **ORDERED** that her Claim be dismissed and her request for reparations be **DENIED**.

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 Date: 2025.09.22 11:28:59
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 Theresa Dike
 Small Claims Officer